

HOUSE BILL 2018

By Cochran

AN ACT to amend Tennessee Code Annotated, Title 4;
Title 7; Title 38 and Title 41, relative to
enforcement of immigration laws.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Tennessee Code Annotated, Section 7-68-105(b), is amended by deleting the word "and" at the end of subdivision (2), deleting the period at the end of subdivision (3) and substituting instead the language "; and", and adding the following new subdivision:

(4) On or after July 1, 2026, require the law enforcement agency to accept and honor any immigration detainer received from federal immigration authorities. As used in this subdivision (b)(4), "accept and honor" means to comply with the requested conditions in the immigration detainer and includes maintaining custody of the subject of an immigration detainer for forty-eight (48) hours, excluding Saturdays, Sundays, and holidays, beyond the time when the subject would have otherwise been released from the law enforcement agency's custody to allow federal immigration authorities to take custody of the subject and notifying federal immigration authorities as soon as possible prior to releasing the subject of the immigration detainer.

SECTION 2. This act takes effect July 1, 2026, the public welfare requiring it.